

Court No. - 21

Case :- WRIT - C No. - 12344 of 2024

Petitioner :- Harbansh Yadav

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Namisha Baranwal

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. Learned counsel for respondent Electricity Department seeks time to obtain instructions.

2. Put up as fresh on 30.04.2024.

Order Date :- 16.4.2024

Sazia

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Kshitij Shailendra, J.

1. As prayed, two weeks' further time is granted to the respondents to obtain instructions.

2. List as fresh on 16.05.2024.

Order Date :- 30.4.2024

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(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Kshitij Shailendra, J.

1. Heard Sri Deepak Kumar Pandey, holding brief of Ms. Namisha Barnawal, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and learned counsel for the respondent-Electricity Department.

2. The petitioner has challenged the bill dated 22.06.2020 issued by the respondent-Electricity Department on the basis of inspection allegedly carried out at the premises of the petitioner and therein, according to the Electricity Department, the petitioner was found consuming the electricity unauthorizedly. The bill mentions that it be treated to be notice under Section 5 of U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958.

3. Learned counsel for the petitioner submits that the petitioner has not been served with any notice of provisional assessment and straightaway impugned notice has been issued.

4. Learned counsel for the respondent-Electricity Department is in receipt of instructions and short counter affidavit has also been filed on behalf of respondents no.2 and 3, in which, it is stated that the writ petition is only against the order of provisional assessment and, thus, not maintainable. It is further stated that as and when the petitioner files reply against the notice, the same shall be decided as per the provisions of Clause 6.8/8.1 of Electricity Supply Code, 2005.

5. Counsel for the petitioner submits that the impugned bill is, in fact, a notice of recovery without there being any final assessment order in existence.

6. We find force in the contention of the petitioner. Concededly, no final assessment order has been passed so far.

7. In such circumstances, we find no justification on the part of the

respondents in invoking power under Section 5 of U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958.

8. We, consequently, quash the impugned bill and leave it open to the concerned Executive Engineer to proceed afresh in the matter in accordance with law.

9. The petition stands **allowed** accordingly.

Order Date :- 16.5.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)